

Opinion of the Court

Declining to reach the merits, the Court concluded the power companies' lawsuit should be dismissed. It explained that the suit was premised on the principle that a person threatened with injury by conduct "which, but for statutory authority for its performance, would be a violation of his legal rights" could request an injunction from a court of equity and by this means test the validity of the statute. *Ibid.* But the Court concluded that the TVA, even if it were shorn of congressional statutory authority, had done nothing more than compete as a supplier of electricity. *Id.*, at 138. And since state law did not purport to grant any of the power companies a monopoly, there was no basis for a suit in which the TVA might be forced to invoke its congressional authorization. *Id.*, at 138–143.

In that part of its analysis, and throughout its opinion, the *Tennessee Electric* Court stated that the problem with the power companies' suit was a lack of "standing" or a "cause of action." It treated those concepts as interchangeable. *E.g., id.*, at 139 (no "standing" because no "legal cause of complaint"); *id.*, at 139–140 (no "standing" without "a cause of action or a right to sue"); *id.*, at 142 ("no standing," no "right to sue for an injunction"); *id.*, at 144 (no Tenth Amendment "standing" and no Ninth Amendment "cause of action" for same reasons); see also Bellia, Article III and the Cause of Action, 89 Iowa L. Rev. 777, 826–830 (2004).

Even though decisions since *Tennessee Electric* have been careful to use the terms "cause of action" and "standing" with more precision, the distinct concepts can be difficult to keep separate. If, for instance, the person alleging injury is remote from the zone of interests a statute protects, whether there is a legal injury at all and whether the particular litigant is one who may assert it can involve similar inquiries. *Steel Co. v. Citizens for Better Environment*, 523 U.S. 83, 96–97, and n. 2 (1998) (noting that statutory standing and the existence of a cause of action are "closely connected" and "sometimes identical" questions).